Brazoria County District Court

Cause No. 2025-CV-0011

Scott Johnson, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	2-23-25
Counsel for defendant:	Marilyn Fox, Ashford & Lyle LLP

Defendant answers Plaintiff's Original Petition by generally denying each and every allegation contained therein, and demands strict proof thereof as required by the Texas Rules of Civil Procedure. Pursuant to Rule 92, Defendant denies that Plaintiff sustained any injury or damages as a result of the occurrence made the basis of this suit, and denies that any act or omission of Defendant proximately caused such injuries or damages.

For further answer, and without assuming any burden of proof that the law places on Plaintiff, Defendant asserts the following affirmative defenses.

First, Plaintiff's own negligence caused or contributed to the occurrence. Plaintiff failed to keep a proper lookout, failed to yield the right-of-way to vehicles lawfully traveling within the parking lot, and failed to exercise ordinary care under the circumstances. Under Chapter 33 of the Texas Civil Practice and Remedies Code, any recovery must be reduced by the percentage of responsibility attributed to Plaintiff.

Second, the occurrence was caused by the acts or omissions of a third party over whom Defendant had no control and for whom Defendant is not legally responsible. Defendant requests that the trier of fact assign responsibility to that person as provided by Section 33.004.

Third, Plaintiff failed to mitigate damages by unreasonably failing to seek or follow reasonable medical treatment, and any recovery must be reduced accordingly.